



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2876: public bodies; executive sessions; agenda

WENINGER FLOOR AMENDMENT

1. Prohibits a public body from placing any proposal to impose or increase a tax rate, assessment or fee in Arizona on the consent agenda for a meeting of the public body.
2. Directs a public body to place an item that was discussed or voted on in executive session on an action agenda and not on a consent agenda.

M. LAVENDER

2/26/2026

(602) 926-3848

WENINGER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2876
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 38-431.01, Arizona Revised Statutes, is amended
3 to read:

4 38-431.01. Public bodies; open meetings required; seating;
5 minutes; posting; recordings; open calls

6 A. All meetings of any public body shall be public meetings and all
7 persons so desiring shall be allowed to attend and listen to the
8 deliberations and proceedings. All legal action of public bodies shall
9 occur during a public meeting.

10 B. Schools, school boards, executive boards and municipalities
11 shall provide for an amount of seating sufficient to accommodate the
12 reasonably anticipated attendance of all persons desiring to attend the
13 deliberations and proceedings, when feasible. This section does not
14 require a public body to relocate a meeting outside of the largest regular
15 meeting room.

16 C. All public bodies shall provide for the taking of written
17 minutes or a recording of all their meetings, including executive
18 sessions. For meetings other than executive sessions, the minutes or
19 recording shall include:

20 1. The date, time and place of the meeting.

21 2. The members of the public body recorded as either present or
22 absent.

23 3. A general description of the matters considered.

24 4. An accurate description of all legal actions proposed, discussed
25 or taken, including a record of how each member voted. The minutes shall
26 also include the names of the members who propose each motion and the
27 names of the persons, as given, who make statements or present material to

1 the public body and a reference to the legal action about which they made
2 statements or presented material.

3 D. Minutes of executive sessions shall include items set forth in
4 subsection C, paragraphs 1, 2 and 3 of this section, an accurate
5 description of all instructions given pursuant to section 38-431.03,
6 subsection A, paragraphs 4, 5 and 7 and other matters as may be deemed
7 appropriate by the public body.

8 E. The minutes or a recording of a meeting shall be available for
9 public inspection three working days after the meeting except as otherwise
10 specifically provided by this article.

11 F. A public body of a city or town with a population of more than
12 two thousand five hundred persons shall:

13 1. Within three working days after a meeting, except for
14 subcommittees and advisory committees, post on its website, if applicable,
15 either:

16 (a) A statement describing the legal actions taken by the public
17 body of the city or town during the meeting.

18 (b) Any recording of the meeting.

19 2. Within two working days following approval of the minutes, post
20 approved minutes of city or town council meetings on its website, if
21 applicable, except as otherwise specifically provided by this article.

22 3. Within ten working days after a subcommittee or advisory
23 committee meeting, post on its website, if applicable, either:

24 (a) A statement describing legal action, if any.

25 (b) A recording of the meeting.

26 G. All or any part of a public meeting of a public body may be
27 recorded by any person in attendance by means of a tape recorder or camera
28 or any other means of sonic reproduction, provided that there is no active
29 interference with the conduct of the meeting.

30 H. The secretary of state for state public bodies, the city or town
31 clerk for municipal public bodies and the county clerk for all other local
32 public bodies shall conspicuously post open meeting law materials prepared
33 and approved by the attorney general on their website. A person elected
34 or appointed to a public body shall review the open meeting law materials
35 at least one day before the day that person takes office.

36 I. A public body may make an open call to the public during a
37 public meeting, subject to reasonable time, place and manner restrictions,
38 to allow individuals to address the public body on any issue within the
39 jurisdiction of the public body. At the conclusion of an open call to the
40 public, individual members of the public body may respond to criticism
41 made by those who have addressed the public body, may ask staff to review
42 a matter or may ask that a matter be put on a future agenda. However,
43 members of the public body shall not discuss or take legal action on
44 matters raised during an open call to the public unless the matters are
45 properly noticed for discussion and legal action.

46 J. A member of a public body shall not knowingly direct any staff
47 member to communicate in violation of this article.

1 K. Any posting required by subsection F of this section must remain
2 on the applicable website for at least one year after the date of the
3 posting.

4 L. A PUBLIC BODY ~~[MUST]~~[MAY NOT] PLACE ~~[ON AN ACTION AGENDA]~~ ANY
5 PROPOSAL TO IMPOSE OR INCREASE A TAX RATE, ASSESSMENT OR FEE IN THIS STATE
6 [ON THE CONSENT AGENDA FOR A MEETING OF THE PUBLIC BODY].

7 Sec. 2. Section 38-431.03, Arizona Revised Statutes, is amended to
8 read:

9 38-431.03. Executive sessions; definitions

10 A. On a public majority vote of the members constituting a quorum,
11 a public body may hold an executive session but only for the following
12 purposes:

13 1. Discussion or consideration of employment, assignment,
14 appointment, promotion, demotion, dismissal, salaries, disciplining or
15 resignation of a public officer, appointee or employee of any public body,
16 except that, with the exception of salary discussions, an officer,
17 appointee or employee may demand that the discussion or consideration
18 occur at a public meeting. The public body shall provide the officer,
19 appointee or employee with written notice of the executive session as is
20 appropriate but not less than twenty-four hours for the officer, appointee
21 or employee to determine whether the discussion or consideration should
22 occur at a public meeting.

23 2. Discussion or consideration of records exempt by law from public
24 inspection, including the receipt and discussion of information or
25 testimony that is specifically required to be maintained as confidential
26 by state or federal law.

27 3. Discussion or consultation for legal advice with the attorney or
28 attorneys of the public body.

29 4. Discussion or consultation with the attorneys of the public body
30 in order to consider its position and instruct its attorneys regarding the
31 public body's position regarding contracts that are the subject of
32 negotiations, in pending or contemplated litigation or in settlement
33 discussions conducted in order to avoid or resolve litigation.

34 5. Discussions or consultations with designated representatives of
35 the public body in order to consider its position and instruct its
36 representatives regarding negotiations with employee organizations
37 regarding the salaries, salary schedules or compensation paid in the form
38 of fringe benefits of employees of the public body.

39 6. Discussion, consultation or consideration for international and
40 interstate negotiations or for negotiations by a city or town, or its
41 designated representatives, with members of a tribal council, or its
42 designated representatives, of an Indian reservation located within or
43 adjacent to the city or town.

44 7. Discussions or consultations with designated representatives of
45 the public body in order to consider its position and instruct its
46 representatives regarding negotiations for the purchase, sale or lease of
47 real property.

1 8. Discussion or consideration of matters relating to school safety
2 operations or school safety plans or programs.

3 9. Discussions or consultations with designated representatives of
4 the public body in order to discuss security plans, procedures,
5 assessments, measures or systems relating to, or having an impact on, the
6 security or safety of buildings, facilities, operations, critical
7 infrastructure information and information technology maintained by the
8 public body. Records, documentation, notes, or other materials made by,
9 or provided to, the representatives pursuant to this paragraph are
10 confidential and exempt from public disclosure under this chapter and
11 title 39, chapter 1.

12 B. Minutes of and discussions made at executive sessions shall be
13 kept confidential except from:

14 1. Members of the public body that met in executive session.

15 2. Officers, appointees or employees who were the subject of
16 discussion or consideration pursuant to subsection A, paragraph 1 of this
17 section.

18 3. The auditor general on a request made in connection with an
19 audit authorized as provided by law.

20 4. A county attorney or the attorney general when investigating
21 alleged violations of this article.

22 C. The public body shall instruct persons who are present at the
23 executive session regarding the confidentiality requirements of this
24 article.

25 D. Legal action involving a final vote or decision shall not be
26 taken at an executive session, except that the public body may instruct
27 its attorneys or representatives as provided in subsection A, paragraphs
28 4, 5 and 7 of this section. A public vote shall be taken before any legal
29 action binds the public body. [A MATTER THAT IS DISCUSSED IN EXECUTIVE
30 SESSION ON WHICH THE PUBLIC BODY MUST TAKE A FINAL VOTE OR MAKE A FINAL
31 DECISION MUST BE PLACED ON THE REGULAR AGENDA AND MAY NOT BE PLACED ON THE
32 CONSENT AGENDA.]

33 E. Except as provided in section 38-431.02, subsections I and J, a
34 public body shall not discuss any matter in an executive session that is
35 not described in the notice of the executive session.

36 F. Disclosure of executive session information pursuant to this
37 section or section 38-431.06 does not constitute a waiver of any
38 privilege, including the attorney-client privilege. Any person receiving
39 executive session information pursuant to this section or section
40 38-431.06 shall not disclose that information except to the attorney
41 general or county attorney, by agreement with the public body or to a
42 court in camera for purposes of enforcing this article. Any court that
43 reviews executive session information shall take appropriate action to
44 protect privileged information.

45 ~~[G. ANY TOPIC THAT WILL BE DISCUSSED IN AN EXECUTIVE SESSION BY A~~
46 ~~PUBLIC BODY MUST BE PLACED ON AN ACTION AGENDA AND MAY NOT BE PLACED ON A~~
47 ~~CONSENT AGENDA.]~~

| 1 [G.] [~~H.~~] For the purposes of this section:
2 1. "Critical infrastructure" has the same meaning prescribed in
3 section 41-1801.
4 2. "Information technology" has the same meaning prescribed in
5 section 18-101.

6 Enroll and engross to conform
7 Amend title to conform

JEFF WENINGER

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